

## TENTATIVE RULINGS

### LAW & MOTION

### DEPT C25

### Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar.** Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by **12:00 p.m.** the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling.**

**May 26, 2026**

**10:00 AM**

If you want a transcript, you must provide your own court reporter.

| #          | Case Name                                                                    | Tentative                                                                                                                                                                                                                                                                                                                                                           |
|------------|------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>101</b> | <b>Medina vs. Hernandez</b><br><br><b>25-01515721</b>                        | Demurrer to Complaint<br><br>Continued to 07/07/2026 at 10:00 AM to be heard w/Motion to Strike scheduled for 07/07/2026.<br><br>Moving party to give notice.                                                                                                                                                                                                       |
| <b>102</b> | <b>Simonoff vs. Chuze Fitness Franchises, Inc.</b><br><br><b>26-01540347</b> | 1. Demurrer to Complaint<br><br>2. Motion to Strike Portions of Complaint<br><br>Defendants CHUZE FITNESS FRANCHISES, INC and RACHAS, INC. dba CHUZE FITNESS (erroneously sued herein as RACHAS, INC.) ("Defendants") demur to Plaintiff's (MALCOLM SIMONOFF) (Plaintiff) Complaint on the grounds that the complaint fails to state facts sufficient to constitute |